

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

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TENTATIVE RULINGS

Date: August 13, 2026

#	Case Name	Tentative
1.	30-2025-01506784 Castro vs. Acevedo	1. Case Management Conference 2. Demurrer to Answer Plaintiff Erasmo Castro’s (“Plaintiff”) demurs to the Answer of Martin Alejandro Flores Acevedo (erroneously named herein as Martin Flores Alejandro Acevedo) (“Defendant”). The demurrer is unopposed. Plaintiff first demurs to the contention in Defendant’s Answer that he was <u>not properly served</u> because the Complaint names him incorrectly. Defendant was named in the Complaint as “Martin Flores Alejandro Acevedo,” but his legal name is Martin Alejandro Flores Acevedo. However, “if the service is otherwise properly made, and the person served is aware that he is the person named as a defendant in the erroneous manner, jurisdiction is obtained.” (Sakaguchi v. Sakaguchi (2009) 173 Cal.App.4th 852, 857.) It appears that Defendant understands that he is the person named in the Complaint. Further, to challenge service, the proper procedure would have been to file a motion to quash service of summons pursuant to Code of Civil Procedure section 418.10. However, the time to file such a motion is “on or before the last day of [defendant’s] time to plead or within any further time that the court may for good cause allow.” (Code Civ. Proc., § 418.10(a).) Because the time has elapsed to file such a motion, the <u>demurrer as to this affirmative defense</u> is SUSTAINED without leave to amend. Plaintiff also demurs to Defendant’s affirmative defense that Plaintiff’s <u>claims are false and made in bad faith</u>. Plaintiff contends that the Answer fails to state facts sufficient to constitute this defense. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) “ ‘The phrase “new matter” refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as “new matter.” ’ ” (Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 812.) “Such ‘new matter’ is also known as ‘an affirmative defense.’ ” (Ibid.) “Affirmative defenses must not be pled as ‘terse legal conclusions,’ but ‘rather . . . as facts “averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” ’ ” (Id. at pp. 812-813.) The defense that Plaintiff’s claims are false is tantamount to a general denial. Since it does not add any new matter, it therefore does not fail for lack of details or facts. On the other hand, the allegation that Plaintiff’s claims are made in bad faith does raise new matter, but is not supported by facts.

		Accordingly, the demurrer is SUSTAINED with 20 days leave to amend as to Defendant's defense that Plaintiff's claims are made in bad faith. The <u>reminder of the demurrer</u> is OVERRULED. Plaintiff to give notice.
3.	30-2025-01454243 Guarino vs. Obradovich	1. Case Management Conference 2. Motion to Strike Portions of Complaint Defendant Piper Anne Obradovich ("Obradovich") moves this Court for an Order striking from the Complaint the prayer for punitive damages (Prayer, page 3, ¶ 14(a)(2)). Multiple authorities exist which address punitive damages, specifically, in the context of alleged drunk driving. Most notable, the California Supreme Court in <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, concluded that "the act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (<i>Id.</i> at p. 892.) The court expressly acknowledged that "conscious disregard" may constitute malice, and elaborated: "In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences." (<i>Id.</i> at pp. 895-896.) The Court in <i>Taylor</i> examined a complaint which alleged: "Defendant became intoxicated and thereafter drove a car while in that condition, despite his knowledge of the safety hazard he created thereby." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896.) The Court noted that the above was "the essential gravamen of the complaint," and further noted that "while a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases." (<i>Ibid.</i>) In finding the allegations therein sufficient to support punitive damages, the Court explained: "There is a very commonly understood risk which attends every motor vehicle driver who is intoxicated." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896-897.) "One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents." (<i>Id.</i> at p. 897.) The court also noted that drunk driving is an extremely serious national problem, and one upon which punitive damages can have a positive impact. (<i>Ibid.</i>) In <i>Peterson v. Superior Court</i> (1982) 31 Cal. 3d 147, the California Supreme Court again found allegations of intoxicated driving sufficient to support a claim of punitive damages where facts were alleged that the Defendant knew of the probable serious injury to others from his drunk driving. (<i>Id.</i> at p. 163.) The Court in <i>Peterson</i> specifically noted that the Complaint therein "allege[d] that defendant drove the vehicle with knowledge that probable serious injury to other persons would result and in conscious disregard of the safety of plaintiff." (<i>Ibid.</i>) In finding the Complaint therein sufficient, the Court in <i>Peterson</i> explained: "The gravamen of the proposed complaint, as of the complaint in <i>Taylor</i>, is that '[d]efendant became intoxicated and thereafter

		drove a car while in that condition, despite his knowledge of the safety hazard he created thereby.” (<i>Id.</i> at p. 163.) Taking the above into consideration, punitive damages are appropriate where the complaint alleges sufficient facts to demonstrate Defendant “became intoxicated and thereafter drove a car while in that condition, despite his knowledge of the safety hazard he created thereby.” (<i>Peterson v. Superior Court</i> (1982) 31 Cal. 3d 147, 163.) In this instance, Plaintiffs plead: “Defendant Piper Anne Obradovich was driving at an unsafe speed, in violation of California Vehicle Code Section 22350, and failed to maintain a speed that would allow her to stop safely within the assured clear distance ahead, also in violation of California Vehicle Code Section 21658. Additionally, Defendant Piper Anne Obradovich was driving under the influence of alcohol, in violation of California Vehicle Code Section 23152(a). As a result of these violations, Defendant Piper Anne Obradovich was unable to stop in time and rear-ended the vehicle Plaintiff Colby James Guarino and Plaintiff Madeline Mary Zimmerman were in.” [Judicial Council Form Complaint, 2nd cause of action ¶GN-1.] Plaintiffs fail to plead Defendant Obradovich became intoxicated and thereafter drove a car while in that condition, despite her knowledge of the safety hazard she created thereby. Rather, they simply pled she was driving under the influence of alcohol in addition to other violations. Therefore, the Defendant Obradovich motion to strike is GRANTED with 20 days leave to amend. To the extent arguments are made on Defendant Hamm’s behalf, the Court did not consider them. The notice of motion lists only Defendant Obradovich as the party bringing the Motion and the Court notes Defendant Hamm filed an Answer on 4/23/2025. Any attempt by Defendant Hamm to be included in this Motion is untimely. [CCP§435(b)(1).] Moving Party to give notice.
6.	30-2025-01470269 Finger vs. FCA US, LLC	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Complaint <u>Demurrer</u> Defendant FCA US LLC (“Defendant”) demurs to the third and sixth causes of action in Plaintiff Richard Finger’s (“Plaintiff”) Complaint. <u>Third Cause of Action for Violation Civil Code section 1793.2(a)(3)</u> Civil Code section 1793.2(a)(3) provides, “Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (3) Make

available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Here, the Complaint alleges, in relevant part:

52. In violation of Civil Code section 1793.2, subdivision (a)(3), Defendant FCA failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. Plaintiff has been damaged by Defendant FCA's failure to comply with its obligations pursuant to Civil Code section 1793.2(a)(3), and therefore brings this Cause of Action pursuant to Civil Code section 1794.

53. Defendant FCA's failure to comply with its obligations under Civil Code section 1793.2, subdivision (a)(3) was willful, in that Defendant FCA knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant FCA failed to take any action to correct its failure to comply with the law. Accordingly, Plaintiff is entitled to a civil penalty of two times Plaintiff's actual damages, pursuant to Civil Code section 1794(c).

The foregoing allegations as to the Third Cause of Action are sufficient to constitute a cause of action. Despite Defendant's contention that there is no indication of which parts or literature were not made available to any repair facilities at any time, Defendant provides no legal authority requiring that Plaintiff identify the alleged literature or replacement parts that were not made available.

Defendant also contends that the damages pled are duplicative of damages for the other three causes of action for violations of the Song-Beverly Consumer Warranty Act, and therefore the cause of action should be stricken. However, this cause of action is not duplicative of the other causes of action, as it relies on a distinct theory of recovery (i.e., the failure to make sufficient literature and replacement parts available). (See, e.g., *Palm Springs Villas II Homeowners Ass'n, Inc. v Parth* (2016) 248 Cal.App.4th 268, 290 (cause of action only duplicative where it adds nothing to the complaint by way of fact or theory of recovery).)

Accordingly, the demurrer to the third cause of action is **OVERRULED**.

Sixth Cause of Action for Fraudulent Inducement – Concealment

Defendant demurs to the Sixth Cause of Action, asserting the same is barred by the three-year statute of limitations articulated within Code of Civil Procedure section 338, subdivision (d). This provision expressly applies to fraud and states: “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).)

Defendant contends that the statute of limitations ran from the date of purchase –January 3, 2022, and expired three years later, on January 3, 2025. (See Code Civ. Proc., § 338, subd. (d).) Plaintiff initiated the instant action until March 25, 2025.

However, the Complaint alleges that “the defect was not known to or reasonably discoverable by Plaintiff before they purchased or leased the Subject Vehicle” and that “Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the

Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them.” (Compl. ¶¶ 22, 38.)

“The provision tolling operation of the statute until discovery of the fraud has long been treated as an exception and, accordingly, this court has held that if an action is brought more than three years after commission of the fraud, plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint.” (*Hayward Union High School Dist. of Alameda County v. Madrid* (1965) 234 Cal.App.2d 100, 126.)

More specifically, “[i]n order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his [or her] claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’ ” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) “In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to ‘show diligence’; ‘conclusory allegations will not withstand demurrer.’ ” (*Ibid.*)

Here, Plaintiff only alleges that the limitations periods was tolled because he “discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them.” (Compl. ¶ 38.) He provides no further factual allegations regarding the time and manner of his discovery of the alleged breaches or fraud or his inability to have discovered them earlier despite reasonable diligence. His allegations of tolling are conclusory and wholly insufficient to invoke the delayed discovery rule or any other equitable tolling.

Accordingly, the demurrer to the sixth cause of action is **SUSTAINED with 20 days leave to amend.**

*** In light of this ruling, the Court need not address Defendant’s remaining challenges to the fraud cause of action. Nonetheless, the Court provides the following analysis regarding why the Demurrer would have been *overruled* as to the following challenged grounds.

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

“California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage” however “the focus of the inquiry shifts to the unique elements of the claim.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43.) Where a duty to disclose arises “by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts,” the Complaint must “include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and

(5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (Id. at pp. 43-44.)

Defendant contends that Plaintiff failed to allege what specific problems Plaintiff experienced, approximately when he brought it in for service, or justifiable reliance on communications about the engine.

However, as noted by the Court in *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party..." (*Ibid.*)

Here, Plaintiff alleged he entered into a warranty relationship with FCA around January 3, 2022 (Complaint, ¶ 7); Plaintiff identified the material facts FCA knew prior to his acquisition of the Subject Vehicle that FCA withheld from Plaintiff (Id., ¶¶ 16, 18-20, 22-23, 25-26, 66-67); Plaintiff alleged that Defendant had superior knowledge of the facts (Id., ¶¶ 22, 67); the safety risks posed by the Engine Defect (Id., ¶¶ 13, 16-17, 20, 23-24, 65, 67, 70); the materiality of that information (Id., ¶¶ 68-69); Plaintiff's reliance on the non-disclosure (Id., ¶¶ 24, 69-71); and damages.

Defendant next contends that Plaintiff fails to plead breach of an independent tort outside the warranty contract claim. The California Supreme Court has specifically indicated that tort damages are permitted in contract cases "where the contract was fraudulently induced." (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990.) "[I]n each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm." (Id. at p. 990.) Additionally, "California case law similarly has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 39.) "Where failure to disclose a material fact is calculated to induce a false belief, the distinction between concealment and affirmative misrepresentation is tenuous." (*Ibid.*)

In demurring to this claim, Defendant relies heavily on *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, however, the California Supreme Court in *Rattagan* held the same exception to the economic loss doctrine discussed in *Robinson* applies to concealment claims, "if the elements of the claim can be established independently of the parties' contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract." (Id. at p. 45.)

Of note, in stating application of the economic loss doctrine would "turn on the nature of the alleged conduct, the provisions of the contract itself, and whether the conduct exposed a party to a risk of harm neither reasonably contemplated nor allocated by the parties before entering their agreement," the Court in *Rattagan* expressly addressed the application of the doctrine to a claim of "fraudulent concealment based on conduct occurring in the course of a contractual relationship..." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 44.) The Court explicitly distinguished such a claim from "fraudulent inducement of contract." (Id. at p. 41.)

Relevant herein, the Court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, specifically found a similar claim for fraudulent inducement was not defeated by the economic loss rule. (Id. at p. 838-839, 843 ["Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court...."])

Defendant next asserts there was no privity of relationship, such as to establish a duty to disclose. The Court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 rejected a similar argument, finding allegations Plaintiff “bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers,” sufficient. (*Id.* at p. 844.) The instant Complaint, similarly, alleges Plaintiff “interacted with FCA’s sales representatives” prior to purchasing the Subject Vehicle and that he entered into a warranty contract with Defendant FCA. (Complaint, ¶¶ 7-8, 70.)

As was the case in *Dhital* and as was recently stated in *Gilead Tenofovir Cases*, “a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects.” (*Gilead Tenofovir Cases* (2024) 98 Cal.App.5th 911, 949, *as modified on denial of reh'g* (Feb. 1, 2024), *rev'd and remanded on other grounds* (Cal., Aug. 3, 2026, No. S283862) 2026 WL 2223748.)

Defendant finally contends that Plaintiff fails to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. This pleading standard identified by Defendant applies to fraudulent *misrepresentations* and not concealment. As the Court in *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* queried, “[h]ow does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Id.* at p. 1384.)

Moreover, the name of the person who made the alleged omission was not identified as a required allegation, necessary to support fraudulent concealment, by the California Supreme Court in *Rattagan*. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44.) Additionally, assuming this information was generally required, “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party...” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) To any extent one individual employed by Defendant was tasked with making required disclosures, Defendant is necessarily in possession of that information.

Motion to Strike

Defendant’s motion to strike portions of complaint is **GRANTED, with 20 days leave to amend.**

The only remaining claims in the complaint against this defendant are for violations of the Song-Beverly Act, under which Plaintiff seeks civil penalties. By seeking civil penalties under that Act, Plaintiff has “in effect elected to waive punitive damages.” (*Troensegaard v. Silvercrest Industries, Inc.* (1985) 175 Cal.App.3d 218, 228.) Thus, without a fraud claim to support the prayer for punitive damages, the request for punitive damages fails. Leave to amend has been granted as to this fraud cause of action, as set forth above.

Defendant to give notice.

7.	30-2025-01518187 LoanDepot.com, LLC vs. West Capital Lending, Inc	1. Case Management Conference 2. Demurrer to Amended Complaint 3. Motion to Strike Portions of Complaint 1) <u>Demurrer</u> Defendants West Capital Lending, Inc., Daniel Iskander, and Eric Hines (collectively “Defendants”) demur to the second, third, fifth, and sixth causes of action to plaintiff loanDepot.com, LLC’s (“Plaintiff”) first amended complaint (“FAC”). As to the 2nd cause of action for CIVIL THEFT IN VIOLATION OF PENAL CODE §496 and 3rd cause of action for CONVERSION, Defendants’ sole argument is that these causes of action are preempted by CUTSA. However, it appears those causes of action include the alleged misappropriation of both trade secrets and other non-trade secret information such as “leads”. Whether or not “leads” are trade secrets cannot be decided on demurrer. Moreover, because a demurrer cannot be sustained if some portion of the factual allegations support the cause of action, (<i>Daniels v. Select Portfolio Servicing, Inc.</i>, 246 Cal. App. 4th 1150, 1167 (2016), <u>demurrer to the 2nd and 3rd causes of action are OVERRULED.</u> <u>Demurrer to the fraud causes of action (5th and 6th) are sustained with 20 days leave to amend for failure to plead with requisite specificity.</u> The traditional rule is that fraud actions are subject to a stricter pleading standard, because they involve a serious attack on defendant's character. Fairness requires that allegations of fraud be pleaded ‘<i>with particularity</i>’ so that the court can weed out nonmeritorious actions before defendant is required to answer. This is said to be the ‘last remaining habitat’ of common law pleading standards. [<i>Committee on Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 C3d 197, 216; <i>Small v. Fritz Cos., Inc.</i> (2003) 30 C4th 167, 183.] As to the 5th cause of action for Concealment, Plaintiff urges that, taken as a whole, the entire FAC is about “a pattern of evasive delay tactics and hide the ball, evidencing an intent to deceive loanDepot.” (Opp page 12:12.) While this may be true, fraud requires specificity, and this Court should not have to weave through 98 paragraphs of a FAC to determine what, precisely, Plaintiff means by Defendants intended to defraud it. That is, there are no facts pled as to this element in the actual cause of action itself. As to the 6th cause of action for “Fraud and False Promise” it is clear from reading through ¶¶89-91 that no facts are pled in support of this cause of action. Rather, Plaintiff expects the Court to flip back and forth between the cause of action and the 87 prior paragraphs to ascertain the facts in support of the elements. The Court declines to do so. The cause of action needs to be pled with requisite specificity. Defendants to give notice. 2) <u>Motion to Strike</u> Defendants WEST CAPITAL LENDING, INC.; DANIEL ISKANDER; and ERIC HINES seek an order striking the following from the First Amended Complaint (“FAC”):
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- Paragraph 42 of the FAC: The words “restitution, disgorgement of profits, compensatory and punitive damage, and attorneys’ fees if any to the extent permitted by law.”
- Paragraph 98 of the FAC: The words: “restitution, disgorgement of profits or any amounts by which Defendants have been unjustly enriched as a result of their wrongful conduct, appointment of a receiver, constructive trust and”
- Prayer for Relief, par 6 at p. 26 of the FAC (in its entirety): “For an order that Defendants, and each of them, disgorge, and for an order imposing a constructive trust on, all property and profits wrongfully acquired by Defendants by means of the unfair business practices alleged in this Complaint, including all properties or investments in which such profits have been invested, either directly or by way of transfer to corporations or other businesses in which defendants have an interest;”
- Prayer for Relief, par 7 at p. 26 of the FAC (in its entirety): “For restitution of such profit and compensation derived by Defendants as a result of their unlawful, unfair, and fraudulent business practices.”

To start, FAC ¶42 is not pled in connection with any particular cause of action or prayer. The full paragraph states:

42. The unlawful business practices **and tortious conduct** of WCL, Iskander and Hines described above have caused loanDepot to suffer competitive harm, and WCL, Iskander and Hines have been unjustly enriched by their unlawful conduct. loanDepot now seeks all available relief and remedies for the harm caused by Defendants, including temporary, preliminary and injunctive relief, restitution, disgorgement of profits, compensatory and punitive damage, and attorneys’ fees if and to the extent permitted by law.

While Defendants seek to strike “restitution, disgorgement of profits, compensatory and punitive damage, and attorneys’ fees if any to the extent permitted by law” as not being permissible under the UCL, the argument ignores that the ¶¶ itself relates to “tortious conduct” as well. MP makes no argument that these remedies cannot awarded for tortious conduct.

Motion is DENIED as to FAC¶42.

Next, Defendants see to strike FAC¶98 which is included in the Unfair Business Practices cause of action.

In *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144, the California Supreme Court explained:

While the scope of conduct covered by the UCL is broad, its remedies are limited. (*Cel-Tech, supra*, 20 Cal.4th at p. 180, 83 Cal.Rptr.2d 548, 973 P.2d 527.) A UCL action is equitable in nature; damages cannot be recovered. (*Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1266, 10 Cal.Rptr.2d 538, 833 P.2d 545 (*Bank of the West*).) Civil penalties may be assessed in public unfair competition actions, but the law contains no criminal provisions. (§ 17206.) **We have stated that under the UCL,**

		“[p]revailing plaintiffs are generally limited to injunctive relief and restitution.” As such, to the extent ¶98 includes verbiage beyond injunctive relief or restitution, that Court strikes it without leave to amend. That is, the Court strikes “disgorgement of profits or any amounts by which Defendants have been unjustly enriched as a result of their wrongful conduct, appointment of a receiver, constructive trust” language from ¶98. Finally, as to striking any language from the <u>prayer</u>, the prayer is not organized by cause of action and Defendants fail to establish that this particular language or remedies are not appropriate to the other causes of action (beside UCL) in the FAC. Therefore, Motion to Strike portions of the Prayer is denied. Defendants to give notice.
8.	30-2023-01340665 Reyes vs. Chow	1. Case Management Conference 2. Motion to Deem Facts Admitted Plaintiffs Carlos Antonio Reyes and Maria Susana Enriquez (“Plaintiffs”) moves to deem Requests for Admission, Set One admitted against Defendant Julio Sanchez (“Defendant”). Plaintiffs also request \$772.50 in sanctions (\$60 filing fee plus 1.5 hours at \$475/hour). Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. (Code Civ. Proc., § 2033.280.) The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280. subds. (a)-(b).) The court shall deem the matters admitted unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Monetary sanctions are mandatory against the party or attorney who necessitated the motion unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Here, the discovery at issue was served on 08/05/2025. Defendant has not provided any responses. Defendant failed to oppose the motion and therefore did not proffer evidence establishing otherwise. Unless Defendant Julio Sanchez provides verified responses to Requests for Admission, Set One before the hearing on the motion, the motion will be GRANTED and Requests for Admission, Set One will be deemed admitted against Defendant Julio Sanchez. Plaintiffs’ request for sanctions is GRANTED in the reduced amount of \$535, (1 hour at \$475/hour plus \$60 for the filing fee) to be paid within 30 days of notice of this motion. Plaintiffs to give notice.

9.	30-2025-01511451 Foote vs. Durham School Services, L.P.	1. Case Management Conference 2. Motion for Leave to Intervene Western Orange County Self-Funded Workers' Compensation Agency moves for an order granting leave of Court to file a Complaint in Intervention. Unopposed Motion is granted. Civ Code§387(a); Ca Lab Code§3852, 3853. Complaint in Intervention to be separately filed and served. Moving Party to give notice.
11.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Motion for Terminating Sanctions Defendant Hill Commercial Investments, Inc. ("Defendant") moves for terminating sanctions or, in the alternative for monetary sanctions against Plaintiffs' attorney, Steven Tamer, together with an order compelling full compliance with all prior Court orders. CCP section 2023.030 outlines the various sanctions that may be imposed "against anyone engaging in conduct that is a misuse of the discovery process," including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, "after notice to any affected party, person, or attorney, and after opportunity for hearing." (Code Civ. Proc., § 2023.030.) Among other acts, disobeying "a court order to provide discovery" and "failing to respond or to submit to an authorized method of discovery," are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) "Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) Many courts have found that terminating sanctions should be imposed only if the court has found a willful failure to comply. (See <i>Valencia v. Mendoza</i> (2024) 103 Cal.App.5th 427, 447; <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The trial court has "broad discretion in selecting the appropriate penalty," and its determination should be upheld "absent an abuse of discretion." (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions "are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions are not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See <i>Corns v. Miller</i> (1986) 181 Cal.App.3d 195, 201.) Here, Plaintiffs Darwin Z. Bicknell and Lissa M. Bareno were ordered on April 16, 2026 to appear for depositions, produce all documents described in the deposition notices (unless a privilege applies), and to, jointly and severally with their attorney of record, pay a monetary sanction of \$800 within 30 days to Defendant's counsel. (ROA 273.) On May 14, 2026, Plaintiffs were ordered to serve responses to Form Interrogatories, Special Interrogatories, and Requests for Production, without objections, within 45 days. They were also

		ordered, jointly and severally with their attorney of record, to pay \$1,200 in monetary sanctions to Defendant's counsel within 30 days. As of the hearing date of this motion, it appears that only Plaintiff Lissa M. Bareno has sat for her deposition. Defendant's counsel declares that Ms. Bareno produced documents and responded to Form Interrogatories, but does not address the Special Interrogatories, written responses to Requests for Production or monetary sanctions. (Tamer Decl. ¶¶3-7.) Plaintiffs contend that Mr. Bicknell is not refusing to appear for his deposition, and has offered to appear by video, but that was unacceptable to Defendant. Mr. Bicknell claims to be out of the country, but is willing to appear for his deposition in August. The opposition does not address Mr. Bicknell's responses to written discovery or payment of monetary sanctions. (Tamer Decl. ¶¶ 8-15.) Nor does counsel indicate that counsel has paid either monetary sanction. (See, generally, Tamer Decl.) The Court is troubled by this failure to comply with its previous orders, without sufficient explanation. The Court nonetheless does not find that the drastic remedy of terminating sanctions is justified at this juncture. The Court will instead impose a lesser monetary sanction of \$2,025 (4.5 hrs at \$450/hr) against Plaintiffs' attorney, Steven Tamer. Sanctions are due and payable to Defendant's counsel within 30 days of this order. Additionally, the Court orders Plaintiffs to fully comply with this Court's April 16 and May 14 orders. Should Plaintiffs fail to comply with those orders within 30 days, the Court will consider granting a subsequent defense motion for terminating sanctions. Defendant to give notice.
12.	30-2024-01443133 ESC-TOY LTD. Vs. Maschoff Brennan Gilmore & Israelsen, PLLC	1. Case Management Conference 2. 2 Motions to Compel <u>Motion to Compel Further Responses to Special Interrogatories (ROA #158)</u> <u>Motion to Compel Further Responses to Request for Production (ROA #157)</u> Given the late filed Oppositions and supporting documents, filed 8/10/26, the Court CONTINUES the hearing on these 2 motions to 8/20/26 at 1:30pm in C34. Any reply briefing in response to the opposition documents to be filed by 8/14/26. No additional briefing. Clerk to give notice.
13.	30-2024-01379003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication There are two motions for summary judgment on calendar: one brought by Defendant Doran Andry ("Defendant Andry") and one brought by Defendant 11WINDS11, LLC ("Defendant 11Winds") Defendant Andry and Defendant 11Winds both move for an order granting summary judgment in their favor on all five causes of action asserted in the First Amended Complaint, which include the: (1) first cause of action for fraudulent transfers in violation of Civil Code section

3439.04, (2) second cause of action for conspiracy to fraudulently convey property, (3) third cause of action for aiding and abetting fraudulent conveyance of property, (4) fourth cause of action for accounting, (5) fifth cause of action for imposition of constructive trust and/or preliminary and permanent injunction, and account.

Plaintiffs Joseph Dib and R&R Life is Amazing (“Plaintiffs”) oppose both motions.

“Summary judgment is properly granted if ‘there is no triable issue as to any material fact and ... the moving party is entitled to a judgment as a matter of law.’” (*Mitchell v. Hutchinson* (2025) 112 Cal.App.5th 1012, 1016 [citing Code Civ. Proc., § 437c, subd. (c)]). “A defendant seeking summary judgment must show that the plaintiff cannot establish at least one element of the cause of action.” (*Id.* [citing *Regents of University of California v. Superior Court* (2018) 4 Cal.5th 607, 618 and Code Civ. Proc., § 437c, subd. (p)(2)]). “If the defendant makes this showing, ‘the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.’” (*Id.* [citing Code Civ. Proc., § 437c, subd. (p)(2)]).

Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if one material fact is disputable, then the issue fails.

Such is the case here since each issue presented in the separate statements of the “undisputed material facts” relies upon the undisputed showing that the Defendants were not a party to the sale of the Subject Property. Defendants both argue that they did not submit an offer to purchase the Subject Property as individual, never entered into an agreement with anyone to purchase the Subject Property as an individual, never signed any monies to purchase the Subject Property as an individual, never purchased and/or had any ownership in the Subject Property, and never transferred any interest in the Subject Property. Defendant Andry also states that the “Subject Property was purchased on November 8, 2022, by 8217 Poinsettia Drive LLC.”

Importantly, however, the First Amended Complaint expressly alleges that Poinsettia LLC is an alter ego shell entitled of Defendant Andry and that all of the corporations discussed in the complaint are alter egos, agents, and co-conspirators of Defendant Daher. (FAC, ¶¶ 20, 22, 21, 26(c), and 27.) Thus, to establish there are no triable issues of material fact as to Defendant Andry’s liability, he must also show that he is not liable for the actions of his alleged alter egos, agents, and co-conspirators: Daher, K & A, Pointsettia LLC, and 11 Winds11, LLC. Likewise, 11Winds must establish that it is not the alter ego, agent, or co-conspirator of Defendant Daher and therefore responsible for the Defendant Daher’s conduct.

The Court finds that there are triable issues of material facts as to these issues based on the evidence submitted in support of the opposition concerning the relationships between Defendant Andry, Defendant 11Winds, and Defendant Daher as well the other entity Defendants. The Court is also persuaded by Plaintiffs that Defendant’s deposition testimonies compared with their declarations in support of the motion further create triable issues of fact and credibility issues that cannot be resolved on a motion for summary judgment.

Given the above, Defendants have not established that they were not part of the sale, transfer, or purchase of the Subject Property because there are triable issues of material fact as to the alter ego, agency, and coconspirator issues alleged in the First Amended Complaint.

	The Motions are DENIED. The Court declines to rule on the evidentiary objections submitted by Plaintiff as the Court need only rule on those evidentiary objections that it deems material to disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) Defendants did not object to Plaintiffs' evidence and the Court finds Plaintiffs' evidence admissible. The Court declines to consider all new points, arguments, and evidence presented for the first time on reply. (See <i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010; <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Plaintiff to give notice.
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